

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 09, 2026
8:30 a.m.

3. DAVID SMITH V. CYNTHIA SMITH

22FL0136

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on July 29, 2026, to compel Respondent's required disclosures under Family Code sections 2104 and 2105.

To date, there is no proof of service of the RFO in the court's file. Respondent filed no Responsive Declaration.

TENTATIVE RULING #3: MATTER IS DROPPED FROM THE CALENDAR DUE TO THE LACK OF SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

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4. JENNIFER MARGARET GOLDSTEIN V. MARK ALAN GOLDSTEIN 24FL0900

This action was filed on August 29, 2024. To date, there is no proof of service of summons on Respondent in the court's file. Under Code of Civil Procedure section 583.420, the court may dismiss an action for delay in prosecution where service is not made within two years after the action is commenced. (Code Civ. Proc., § 583.420, subd. (a)(1).)

On March 06, 2026, the court mailed the Petitioner notice of this two-year dismissal hearing.

Pursuant to Code of Civil Procedure section 583.420, the court dismisses the action without prejudice.

TENTATIVE RULING #4: PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 583.420, THE COURT DISMISSES THE ACTION WITHOUT PREJUDICE.

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